

		Accordingly, the motion is DENIED .
		Counsel for Plaintiffs is ordered to give notice of this ruling.
8	Deebes vs. JD Property Management, Inc.	Defendants J.D. Property Management, Inc., and Pioneer Equities Corporation ("Defendants" together) Motion for Summary Judgment, or in the Alternative, Summary Adjudication ("Motion") is GRANTED in part and DENIED in part. The court notes the hearing on the Motion was continued to permit Plaintiff Souheil Deebes ("Plaintiff") time to conduct additional discovery. Plaintiff was given leave to file a supplemental opposition by 04/01/25. (ROA 188.) Instead of timely filing the supplemental opposition, Plaintiff waited until 04/07/25, without providing any reasoning for the delay. Despite Plaintiff's delay, Defendants were able to file a timely supplemental reply. Although the court in its discretion will consider the supplemental opposition, the Court's ultimate decision would not change if it were disregarded. "(p) For purposes of motions for summary judgment and summary adjudication: . . . (2) A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Civ. Proc. Code § 437c(p)(2).) "(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (2) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. . ." (Civ. Proc. Code § 437c(f).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact

and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Civ. Proc. Code § 437c(c).)

Defendants move for summary judgment/adjudication as to causes of action ("COA") No. 1 – Negligence and No. 2 – Negligent Hiring, Supervision, Training, And Retention. Defendants also request summary adjudication as to the issue of respondeat superior

1) COA No. 1 – Negligence

"The elements of a cause of action for negligence are well established. They are '(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.' " (*Ladd v. Cty. of San Mateo* (1996) 12 Cal. 4th 913, 917.) "[T]he existence of a duty is a question of law for the court." (*Kentucky Fried Chicken of Cal., Inc. v. Superior Court* (1997) 14 Cal. 4th 814, 819.)

"As a general principle, a "defendant owes a duty of care to all persons who are foreseeably endangered by his conduct, with respect to all risks which make the conduct unreasonably dangerous." [Citations.] As we shall explain, however, when the avoidance of foreseeable harm requires a defendant to control the conduct of another person, or to warn of such conduct, the common law has traditionally imposed liability only if the defendant bears some special relationship to the dangerous person or to the potential victim." (*Tarasoff v. Regents of Univ. of California* (1976) 17 Cal. 3d 425, 434–35 ("Tarasoff").) "Although, as we have stated above, under the common law, as a general rule, one person owed no duty to control the conduct of another [Citations], nor to warn those endangered by such conduct (Rest.2d Torts, supra, § 314, com. c.; Prosser, Law of Torts (4th ed. 1971) § 56, p. 341), the courts have carved out an exception to this rule in cases in which the defendant stands in some special relationship to either the person whose conduct needs to be controlled or in a relationship to the foreseeable victim of that conduct (see Rest.2d Torts, supra, §§ 315–320). (*Tarasoff, supra*, 17 Cal. 3d at 435.)

"We begin by noting that in any analysis of foreseeability, the emphasis must be on the specific, rather than more general, facts of which a defendant was or should have been aware." (*Pamela W. v. Millsom* (1994), 25 Cal. App. 4th 950, 957) "Also relevant are the observations of another court: "No one really knows why people commit crime, hence no one really knows what is 'adequate' deterrence in any given situation. While bright lights [or in this case, an alarm] may deter some, they will not deter all. Some persons